

HOUSE No. 3036

The Commonwealth of Massachusetts

PRESENTED BY:

Antonio F. D. Cabral

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to historic building tax credits.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Antonio F. D. Cabral</i>	<i>13th Bristol</i>	<i>1/9/2025</i>

HOUSE No. 3036

By Representative Cabral of New Bedford, a petition (accompanied by bill, House, No. 3036) of Antonio F. D. Cabral for legislation to establish a historic building fire prevention tax credit. Revenue.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2723 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to historic building tax credits.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 62 of the General Laws, as appearing in the 2022 Official Edition, is hereby
2 amended by inserting after Section 6O, the following section:

3 Section 6P. Historic Building Fire Prevention Tax Credits.

4 (a) There is hereby established a historic building fire prevention tax credit. A person,
5 firm, partnership, trust, estate, limited liability company, or other entity subject to the income tax
6 imposed by the provisions of this chapter or chapter 63 of the General Laws shall be allowed a
7 credit, to be computed as hereinafter provided, against taxes owed to the commonwealth under
8 chapter 62 or chapter 63 toward the cost of the installation of a fire protection sprinkler system,

as defined in section 81 of chapter 146 of the General Laws, in a qualified historic structure, as defined in section 6J of chapter 62 of the General Laws.

(b) The credit allowed under this section shall be equal to 50 percent of the costs incurred installing said system, with a maximum credit of \$10,000 per taxpayer in any fiscal year. The Massachusetts fire Prevention regulations board shall determine the criteria for eligibility for the credit, the criteria to be set forth in regulations promulgated under this section. The credit allowable under this section shall be allowed for any taxable year until 2035.

(c) Tax credits allowed under this section shall be allowed for the taxable year in which the costs are incurred; provided, however, that a tax credit allowed under this section shall not reduce the tax owed below \$0. A taxpayer allowed a credit under this section for a taxable year may carry over and apply against such taxpayer's tax liability in any of the succeeding 5 taxable years, the portion, as reduced from year to year, of those credits which exceed the tax for the taxable year.